

Decl., Exh. C, ¶ 8.) These provisions require the arbitrator to follow governing law in fashioning any award, including FEHA's fee-shifting provision, and do not operate to deprive Plaintiff of any unwaivable statutory remedy.

IV. Disposition

Plaintiff has not shown a waiver of the right to arbitrate. The Court finds only minimal procedural unconscionability arising from the adhesive nature of the Agreement, and no substantive unconscionability. Because Plaintiff has failed to establish both elements, an unconscionability defense fails. The motion is therefore granted, and Plaintiff's claims are ordered to arbitration. This action is stayed pending the completion of that process.

20. 9:00 AM CASE NUMBER: C25-02337

CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN

***HEARING ON MOTION IN RE: ORDER GRANTING PROPOSED INTERVENOR GREAT WEST CASUALTY COMPANY LEAVE OF COURT TO INTERVENE**

FILED BY: GREAT WEST CASUALTY COMPANY

TENTATIVE RULING:

Great West Casualty Company seeks leave of the Court to intervene in this matter, pursuant to Code of Civil Procedure section 387. The Court received no opposition.

Plaintiffs Jose Barrera Galeana and Leticia Perez-Romo filed a lawsuit arising out of a motor vehicle collision on November 16, 2023. Named Defendants are Brant Aderman and Brant Aderman Trucking, LLC. The vehicle driven by Defendant Aderman was owned by Defendant Aderman Trucking, and was insured by the proposed Intervenor, Great West. Since the incident, Defendant Aderman Trucking was administratively dissolved by California's Secretary of State. While Defendant Aderman has filed an Answer in this matter, Defendant Aderman Trucking has not, and Great West seeks to intervene so it can defend this lawsuit on Defendant Aderman Trucking's behalf.

Great West has attached a proposed Answer in Intervention. Code Civ. Pro. § 387(c). Great West has moved in a timely manner. Code Civ. Pro. § 387(d). Finally, Great West asserts a valid reason for intervention. Code Civ. Pro. § 387(d)(1)(B). The Motion is therefore **granted**.

21. 9:00 AM CASE NUMBER: C25-02823

CASE NAME: TAMARA ZABLOCKI VS. JEARALDIN ALTOBAR

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: ALTOBAR, JEARALDIN

TENTATIVE RULING:

The Court continues the hearing on this motion to May 7, 2026 at 9:00 a.m.

22. 9:00 AM CASE NUMBER: N25-2373

CASE NAME: PETITION OF:WHITE GATE HOMEOWNERS CORPORATION

HEARING IN RE: PETITION SET AT EX-PARTE REQUEST

FILED BY:

TENTATIVE RULING:

White Gate Homeowners' Corporation has filed a Petition to Reduce Required Voting Percentage for Amendment of CC&Rs Pursuant to Civil Code § 4275 and Corporations Code § 7515. White Gate filed an ex parte application setting forth the manner in which that notice would be served, which was granted. In the course of the ex parte process, White Gate represented that it received communications regarding potential opposition from a homeowner to the underlying petition. After the passage of two additional months, however, White Gate has received no such opposition to its Petition.

White Gate has satisfied all statutory requirements. There being no opposition, the Petition is **granted**. The restated CC&Rs (Exhibit F attached to Ash Decl.) may be approved on the basis of the affirmative votes already received, subject only to the requirement that the Restated CC&Rs be executed and acknowledged by Petitioner's treasurer and secretary and recorded in the Office of the Contra Costa County Recorder, together with a copy of the Court's order.